

**BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

In the Matter of:

JORDAN RIVERA, a minor, by and through
the parent, DANA RIVERA,

Petitioner,

v.

RIVER OAK UNIFIED SCHOOL DISTRICT,

Respondent.

Case No. _____

**DUE PROCESS COMPLAINT
NOTICE**

20 U.S.C. § 1415(b)(7)

34 C.F.R. § 300.508

Date: April 17, 2026

I. PRELIMINARY STATEMENT

1. Petitioner Jordan Rivera (“Student”) is a student eligible for special education and related services under the category of Autism, and attends Willow Creek Elementary School in the River Oak Unified School District (“District”). This due process complaint is brought on Student’s behalf by the parent, Dana Rivera (“Parent”), who is self-represented.

2. The District has denied Student a free appropriate public education by carrying forward a reading fluency rate Student has not moved toward; by failing to conduct the reevaluation of Student’s reading it twice undertook to begin; by declining to revise the goal when its own progress reports recorded that it was not met; and by failing to deliver the specialized academic instruction the operative individualized education program requires. Petitioner requests an impartial due process hearing on the problems stated in this complaint.

II. REQUIRED INFORMATION

The elements 34 C.F.R. § 300.508(b)(1)–(3) requires, with the further details the filing office asks for.

Element	As provided	Required by
Name of the child	Jordan Rivera	§ 300.508(b)(1)
Address of the child’s residence	1418 Alder Street, Willow Creek, CA 95833	§ 300.508(b)(2)
Name of the school the child attends	Willow Creek Elementary School	§ 300.508(b)(3)
Date of birth	November 3, 2017	the filing office’s form
Contact for the Parent	dana.r@example.com, (555) 010-4471	the filing office’s form

III. JURISDICTION, TIMELINESS AND BURDEN

3. A parent may file a due process complaint on any of the matters described in 34 C.F.R. § 300.503(a)(1) and (2): the identification, evaluation or educational placement of a child with a disability, or the provision of a free appropriate public education to the child. 34 C.F.R. § 300.507(a)(1). The complaint must allege a violation that occurred not more than two years before the date the parent knew or should have known about the alleged action, unless the State has an explicit time limitation. 34 C.F.R. § 300.507(a)(2). California sets a two-year period of its own in Education Code section 56505. The violations pleaded below begin with the individualized education program dated September 8, 2025 and continue to the date of this complaint.

4. Student resides in the District, which is the local educational agency responsible for making a free appropriate public education available to Student. 34 C.F.R. § 300.101.

IV. STATEMENT OF FACTS

5. Student was found eligible for special education and related services under the category of Autism on March 11, 2024, and the individualized education program in effect before the one at issue was dated March 11, 2024. (p. 1).
6. On August 29, 2025, on the DIBELS 8 oral reading fluency measure, Student read 22 words per minute on a first-grade passage with 86% accuracy. The same document records the end-of-second-grade benchmark on that measure as 87 words per minute, and records that Student “decodes consonant-vowel-consonant words and most high-frequency words but does not yet apply vowel-team or silent-e patterns.” (p. 1).
7. On September 8, 2025, the individualized education program team adopted an annual goal that Student will increase oral reading fluency to 60 words per minute with 90% accuracy on a first-grade passage, from a baseline of 22 words per minute, and recorded that the goal was “carried forward from the 03/11/2024 IEP with the baseline updated.” (p. 1).
8. The individualized education program dated September 8, 2025 provides 240 minutes per week of specialized academic instruction in reading, delivered in a small-group setting of no more than 4 students by a credentialed special education teacher, in the special education classroom. (p. 1).
9. The Parent consented to that individualized education program on September 8, 2025 with a written exception: “I do not agree that the reading goal is appropriate. I am asking for a goal based on Jordan’s current level and for more intensive reading instruction.” The same document records the Parent’s statement that the goal had not changed since the March 11, 2024 program. (p. 2).
10. In the week of October 6, 2025, the District’s service delivery log records 90 minutes of specialized academic instruction and the note “small-group reading block discontinued pending staffing; SAI provided in the general education classroom during available periods.” (p. 1).

11. The District's progress report dated November 14, 2025 recorded 21 words per minute and 88% accuracy, and described Student as "Progressing slowly." (p. 1).
12. On December 2, 2025, the Parent requested in writing a reevaluation of Student's reading skills, including a full assessment of phonological processing and decoding, and asked the District to send the assessment plan. (p. 1).
13. On December 4, 2025, the District's Director of Special Education replied that "The District will prepare an assessment plan for your consent within the required timeline." (p. 1).
14. The District's progress report dated January 23, 2026 recorded 24 words per minute and 90% accuracy, and described Student as "Progressing slowly." (p. 1).
15. The District's progress report dated March 6, 2026 recorded 23 words per minute and 89% accuracy, and states: "Goal not met. Recommend continuing the goal." (p. 1).
16. The District's service delivery log for September 8, 2025 to February 27, 2026 records 24 instructional weeks, 4 weeks at the full 240 minutes, 20 weeks below 240 minutes, and an average of 95 minutes delivered per week across the period. The same log records that the small-group reading block was discontinued on October 6, 2025 when the reading intervention position became vacant, and that the position remained unfilled as of February 27, 2026. (p. 1).
17. The same log attributes some of those weeks to the school calendar rather than to the vacancy: the week of November 17, 2025 at 45 minutes, noted "minimum day schedule"; the week of November 24, 2025 at 0 minutes, noted "school closed 11/26-11/28; no sessions logged 11/24-11/25"; the week of December 22, 2025 at 30 minutes, noted "two-day week before winter recess"; the week of January 19, 2026 at 45 minutes, noted "holiday 01/19"; and the week of February 16, 2026 at 45 minutes, noted "holiday 02/16." The log excludes the week of December 29, 2025 from the period altogether as winter recess. (p. 1).
18. On March 12, 2026, at a review the Parent had requested, the individualized education program team declined to revise the reading fluency goal, and the District issued a prior written notice. (p. 1).

19. That prior written notice explains the refusal: the team “determined that the goal remains appropriate and that Jordan is making progress toward it, as reflected in the progress reports dated November 14, 2025, January 23, 2026 and March 6, 2026,” and “will review the goal at the annual review in September 2026.” (p. 1).
20. The same prior written notice records that the District “acknowledges that the small-group reading block was discontinued in October 2025 owing to staffing and that specialized academic instruction has since been provided within the general education classroom,” and that “Compensatory services were not proposed at this meeting.” (p. 1).
21. The same prior written notice records the Parent’s written request of December 2, 2025 for a reevaluation and states: “The District will provide an assessment plan.” (p. 1).
22. On March 14, 2026, the Parent requested in writing that the reading fluency goal be revised based on Student’s current level, and that the District provide the assessment plan requested on December 2, 2025, which she had not received. (p. 1).
23. On April 2, 2026, the Parent wrote that she had received no response to her March 14, 2026 request and still had no assessment plan. (p. 1).

V. STATEMENT OF THE PROBLEMS

A. Failure to provide a free appropriate public education

34 C.F.R. §§ 300.101, 300.320, 300.324.

24. An individualized education program must be reasonably calculated to enable a child to make progress appropriate in light of the child’s circumstances. *Endrew F. ex rel. Joseph F. v. Douglas Cnty. Sch. Dist. RE-1*, 580 U.S. 386, 399 (2017).
25. The goal the District adopted on September 8, 2025 was the goal from the previous program with its baseline rewritten, and the Parent took written exception to it at the meeting that adopted it (paragraphs 7 and 9). Over three reporting periods the District recorded 21, 24

and 23 words per minute against a rate of 60, and its own March 6, 2026 report states that the goal was not met and recommends continuing it (paragraphs 11, 14 and 15).

26. The District answered that the goal “remains appropriate” and that Student “is making progress toward it, as reflected in” those three reports (paragraph 19). The reports it relies on are the reports that record the rate falling between the second and the third. Student has met the accuracy criterion the goal sets and not the rate, which is the half of the goal the services address, and the District proposes no change to the rate, the services or the way progress is measured before September 2026.

B. Failure to evaluate appropriately and on time

34 C.F.R. §§ 300.303–300.311.

27. A parent may request a reevaluation, and a public agency must conduct one when the parent requests it, subject to the limits in 34 C.F.R. § 300.303.

28. The Parent requested a reevaluation of Student’s reading in writing on December 2, 2025, naming phonological processing and decoding as the areas to assess (paragraph 12). The District replied two days later that it would prepare an assessment plan for her consent “within the required timeline” (paragraph 13), repeated on March 12, 2026 that it “will provide an assessment plan” (paragraph 21), and had provided none by April 2, 2026 (paragraph 23).

29. The District has never refused the reevaluation. It accepted it twice in writing and did not begin it, so consent was never sought and no assessment has been conducted in either area the Parent named. The program’s own present levels describe Student’s decoding in words — vowel-team and silent-e patterns not yet applied — without any assessment of it, and no measure of phonological processing exists in the record from which services addressing it could be written (paragraph 6).

C. Failure to reconvene or revise the individualized education program

34 C.F.R. § 300.324(b).

30. The team must revise the individualized education program as appropriate to address any lack of expected progress toward the annual goals. 34 C.F.R. § 300.324(b)(1)(ii)(A).

31. The lack of expected progress was on the District's own documents before the Parent asked for anything: three progress reports, the last recording the goal as not met (paragraphs 11, 14 and 15). At the review on March 12, 2026 the team declined to revise the goal (paragraph 18), and the Parent's written request of March 14, 2026 drew no reply (paragraphs 22 and 23).

32. The District's stated reason is that Student "is making progress toward" the goal, as reflected in those three reports (paragraph 19). Progress toward a rate is movement in the rate, and the rate the District recorded was lower in March than in January. A report that records a goal as not met and recommends continuing it unchanged is a reason to revise the program, not a reason to leave it until the annual review.

D. Failure to implement the services the individualized education program requires

34 C.F.R. § 300.323.

33. A public agency must make the special education and related services available to the child in accordance with the child's individualized education program. 34 C.F.R. § 300.323(c)(2).

34. The program requires 240 minutes a week of specialized academic instruction in reading, in a small group of no more than 4 in the special education classroom (paragraph 8). The District's own log records 20 of the 24 instructional weeks below that amount and an average of 95 minutes a week across the period (paragraph 16). The service stopped in the form the program specifies on October 6, 2025, when the reading intervention position fell vacant, and the position was still unfilled on February 27, 2026 (paragraphs 10 and 16).

35. The weeks the log attributes to the school calendar are not claimed here (paragraph 17). Across the weeks that remain, Student received 1,155 of the 3,600 minutes the program

required, a shortfall of 2,445 minutes. The District acknowledges the discontinuation and its cause, and records that “Compensatory services were not proposed at this meeting” (paragraph 20). A staffing vacancy is the District’s to solve.

VI. PROPOSED RESOLUTION

34 C.F.R. § 300.508(b)(6).

36. The Parent proposes the following resolution:

- (a) conduct the reevaluation of Student’s reading the Parent requested on December 2, 2025, assessing phonological processing and decoding (claim B; 34 C.F.R. §§ 300.303, 300.304);
- (b) convene an individualized education program team meeting within 15 days of that assessment to adopt measurable reading goals based on it (claims A and C; 34 C.F.R. § 300.324(b));
- (c) provide 2,445 minutes of compensatory specialized academic instruction in reading, being the shortfall between the 3,600 minutes the program required in the weeks the District’s service delivery log records below 240 minutes and does not attribute to the school calendar, and the 1,155 minutes the log records as delivered in those weeks (claim D; 34 C.F.R. § 300.323); and
- (d) implement the individualized education program as written, in a small group of no more than 4 in the special education classroom, and provide the Parent the service delivery log each quarter (claim D; 34 C.F.R. § 300.323).

VII. RESERVATION OF RIGHTS

37. Petitioner reserves the right to amend this complaint as 34 C.F.R. § 300.508(d)(3) permits, and to seek any other relief the hearing officer is authorized to grant on the problems stated above.

Dated: _____

Respectfully submitted,

Dana Rivera
Parent of Jordan Rivera
Self-represented (pro se)
1418 Alder Street
Willow Creek, CA 95833
(555) 010-4471
dana.r@example.com

CERTIFICATE OF SERVICE

The Parent certifies that on the date written below a true and complete copy of this Due Process Complaint Notice was served on each office named below, by the method indicated below.

Method of service: ☐ U.S. mail ☐ Hand delivery ☐ Other: _____

Served on:

Superintendent, River Oak Unified School District, 500 Oak Valley Road, Willow Creek, CA 95833

Special Education Division, Office of Administrative Hearings, 2349 Gateway Oaks Drive, Suite 200, Sacramento, CA 95833

Dated: _____

Dana Rivera
Self-represented (pro se)